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Tentative Ruling

Re: ***LS Power Grid California LLC v. Olivia Chaney, Surviving Trustee of the Chaney Family Trust, Established March 9, 1996 et al.***

Superior Court Case No. 26CECG01248

Hearing Date: August 18, 2026 (Dept. 403)

Motion: By plaintiff LS Power Grid California, LLC for Order of Prejudgment Possession

Tentative Ruling:

To deny without prejudice. (Code Civ. Proc., § 1255.410, subd. (a).)

Explanation:

Plaintiff LS Power Grid California, LLC ("Plaintiff") moves for an order of prejudgment possession for an easement under Code of Civil Procedure section 1255.410.

Code of Civil Procedure section 1255.410, subdivision (a), requires that a motion under the statute "shall describe the property of which the plaintiff is seeking to take possession, which description may be by reference to the complaint, and shall state the date after which the plaintiff is seeking to take possession of the property."

Plaintiff has described the property Plaintiff is seeking an easement on. (Bratcher Decl., Exh. 1.) However, Plaintiff's motion does not state the date after which Plaintiff is seeking to take possession of the property as required by Code of Civil Procedure section 1255.410, subdivision (a). Accordingly, the motion is denied without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on August 17, 2026.
(Judge's initials) (Date)

(48)

Tentative Ruling

Re: ***Hernandez v. Norwood***
Superior Court Case No. 24CECG05367

Hearing Date: August 18, 2026 (Dept. 403)

Motion: By Plaintiff for Leave to File a First Amended Complaint

Tentative Ruling:

To grant plaintiff Monica Hernandez's motion for leave to file a first amended complaint. (Code Civ. Proc., § 473.) Plaintiff shall file their first amended complaint within 10 days of the date of service of this order.

Explanation:

“ ‘Code of Civil Procedure section 473, which gives the courts power to permit amendments in furtherance of justice, has received a very liberal interpretation by the courts of this state.... In spite of this policy of liberality, a court may deny a good amendment in proper form where there is unwarranted delay in presenting it.... On the other hand, where there is no prejudice to the adverse party, it may be an abuse of discretion to deny leave to amend.’ [Citation.] ‘In the furtherance of justice, trial courts may allow amendments to pleadings and if necessary, postpone trial.... Motions to amend are appropriately granted as late as the first day of trial ... or even during trial ... if the defendant is alerted to the charges by the factual allegations, no matter how framed ... and the defendant will not be prejudiced.’ [Citation.]” (*Rickley v. Goodfriend* (2013) 212 Cal.App.4th 1136, 1159.)

“While a motion to permit an amendment to a pleading to be filed is one addressed to the discretion of the court, the exercise of this discretion must be sound and reasonable and not arbitrary or capricious. And it is a rare case in which ‘a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.’ If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (*Morgan v. Superior Court of Cal. In and For Los Angeles County* (1959) 172 Cal.App.2d 527, 530, internal citations omitted.)

Plaintiff Monica Hernandez (“Plaintiff”) moves the court for an order granting her leave to file a first amended complaint to amend one cause of action and add five causes of action. Plaintiff seeks to include causes of action for sick leave retaliation, Kin Care, FEHA retaliation, breach of written contract, and breach of implied covenant of good faith and fair dealing. Plaintiff does not provide the cause of the delay in making the instant request. However, denial of the request would likely prevent Plaintiff of her right to assert meritorious causes of action.

Defendant opposes the request on the basis of prejudice caused by the delay in amending the complaint after substantial discovery has been completed. Defendant argues that the added causes of action goes beyond the facts that arose from the original Complaint, which necessitates additional discovery efforts. Defendant asserts that claims related to breach of contract, Kin Care, and retaliation would necessitate further investigation of his own records and recollections of the event. However, a trial date has not been set and further discovery may be conducted. As such, Defendant has failed to show that he would be prejudiced by the filing of the proposed First Amended Complaint. Accordingly, the motion is granted.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** August 17, 2026.
(Judge's initials) (Date)